

Relief is not available under *Estate of Heggstad* (1993) 16 Cal.App.4th 943 because the properties are not identified in the trust or any trust exhibit.

Whether relief is available under *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156 depends, in part, on when title to the subject properties was acquired. In *Ukkestad*, the court determined that an all-real-property funding clause can satisfy the statute of frauds to create a trust in real property not identified in the writing but which can be defined by extrinsic evidence such as real property records. *Ukkestad, supra*, 235 Cal.App.4th at 162–163. However, the trust provision in *Ukkestad* "assigned the ownership of all of [settlor's] real property to the trustees of the Trust *effective immediately*." *Id.* at 159 (emphasis added). *Ukkestad* did not involve after-acquired property and so does not hold that property acquired contrary to the trust after its execution is or automatically becomes trust property. The allegations of the petition do not establish that sufficient extrinsic evidence existed at the time the trust was executed to establish that the trust was funded with the subject properties.

The pourover will has no effect until probated and, when probated, requires estate administration. "In the absence of any transfer to [a] trust *prior to* [decedent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280–281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

Because the allegations are insufficient for the court to grant relief, it is recommended the petition be denied.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

28. S-PR-0014239 In Re the Estate of Okamoto, Catherine Susan

Appearance is required for status hearing re special administration.

The court should determine whether notice should be required to heir of decedent and all persons interested in decedent's living trust for a continued status hearing.